

Mohd. Ibrahim Khan v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 1 May 2026 · Writ-C No. 16897 of 2026 · **Writ disposed of; petitioner relegated to a fresh Clause 6.5 representation before the Executive Engineer.**

HEADNOTE

Where a consumer seeks writ relief to correct a disputed electricity bill and restore supply disconnected for non-payment, and the licensee raises — and the consumer does not dispute — the alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the High Court will not decide the billing dispute. The petition is disposed of permitting a fresh representation to the Executive Engineer, to be decided strictly in accordance with law.

FACTUAL SUMMARY

Mohd. Ibrahim Khan sought a mandamus to correct the bill and arrears on connection no. 8843201682 under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and to restore supply disconnected on 15 April 2026 for non-payment of the disputed bill, allegedly without deciding his objection. Pashchimanchal Vidyut Vitran Nigam Limited raised the alternative remedy under Clause 6.5. The petitioner did not dispute that objection and stated he had already applied to the Executive Engineer at Meerut, the competent authority under the clause.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing objection — alternative remedy before Executive Engineer

HOLDING

A writ seeking correction of a disputed electricity bill under Clause 6.5, and restoration of supply disconnected for non-payment of that bill, is disposed of where the licensee raises, and the consumer does not dispute, the alternative remedy under Clause 6.5. The consumer may file a fresh representation before the Executive Engineer within one month; the Engineer shall decide it strictly in accordance with law within one month of receipt. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF BILL AND ARREARS CORRECTION

The Court did not examine whether the bill or arrears on connection 8843201682 required correction under Clause 6.5. ¶ 1, 5

NOT DECIDED — LEGALITY OF DISCONNECTION AND RESTORATION

The Court did not decide whether disconnection on 15 April 2026 without deciding the petitioner's objection was unlawful, or whether supply must be restored. ¶ 1, 5